PRINCETON ZONING BOARD OF ADJUSTMENT
COUNTY OF MERCER

File No. Z1616-420
86 Spruce Street, LLC -Owner/Applicant
86 Spruce Street
Block 30.03, Lots 62 and 63

FINDINGS OF FACT, CONCLUSIONS AND RESOLUTION GRANTING "C" VARIANCE AND MINOR SITE PLAN APPROVAL

WHEREAS, the applicant 86 Spruce Street, LLC has applied for a " c" variance pursuant to *N.J.S.A.* 40A: 55D-70 (c) and for minor site plan approval for property located at 86 Spruce Street, Princeton, New Jersey (being Block 30.03, Lots 62 and 63 on the Princeton Tax Map), in the R4 zoning district; and

WHEREAS, the Board held a public hearing on the application on February 22, 2017; and

WHEREAS, the Board reviewed the evidence presented at the hearing and made the following factual findings and conclusion:

1. The Board entertained jurisdiction over the application under *N.J.S.A.* 40:55D-70 (c) and N.J.S.A .40:55D-37 of the Municipal Land Use Law.

2. The applicant complied with the notification and publication requirements of the Municipal Land Use Law. All property taxes due and owing for the subject property are paid in full as are the professional fees/escrow account in connection with the within application.

3. 86 Spruce Street LLC is the owner of 86 Spruce Street, Princeton, NJ, Block 30.03, Lots 62 and 63 the subject property ("the Property"), which is located in the R4 zoning district and the applicant hereunder.

4. The Property is subject to the use and bulk regulations set forth in Sections 17A-254 and 257.

5. The applicant was represented by Ryan Kennedy Esq, Stevens & Lee.

6. In 1990, the applicant filed a bifurcated use variance application seeking approval to use the existing nine unit multiple dwelling as a ten unit multiple dwelling unit. Although the R4 zone permits multiple family dwellings, a use variance was required because the lot was nonconforming with respect to lot area and density. By resolution dated July 26, 1990, the Princeton Borough Zoning of Adjustment granted use variance approval to utilize the structure for a ten unit multiple dwelling subject to registration of all units with the Borough rent registration Board, conformance with all fire code, housing code and building code requirements and submission of an application for site plan approval to include a minimum of fifteen parking spaces in conformance with the zoning ordinance parking requirements (" the Prior Approval").

The applicant has now submitted an application for site plan approval to demonstrate compliance with the fifteen space parking requirement and also seeks a bulk variance to allow the parking lot to remain unpaved in violation of Section 17A-390 (b) of the former Princeton Borough land use ordinance.

7. Derek Bridger, Zoning Officer provided testimony. Mr. Bridger presented a joint memorandum prepared by Mr. Bridger and John M. West P.E., Land Use Engineer, dated January 31, 2017("Bridger/West memo").

Mr. Bridger reviewed the Prior Approval and the conditions of that approval. Mr. Bridger advised that the current site plan proposes 21 9' x 19' parking stalls to be located in the existing parking area in the back of the Property. He noted that surveys from the original 1990 application indicate that the parking area has been expanded along the northern lot line.

Mr. Bridger noted that the Property is located on the north side of Spruce Street between Chestnut Street and Pine Street and contains 18, 586 square feet. The Property is located within the R4 residential zoning district. Mr. Bridger testified that the adjacent properties to the east, west and south are one to four unit residential properties in the R4 zone. The Property abuts the Barbara Sigmund Park and Hamilton Avenue to the north and Westminster Choir College is located across Hamilton Avenue to the north.

Mr. Bridger further testified that the staff supports the requested variance because paving the parking lot would increase the rate of runoff over the Property and have a negative impact on the adjoining property to the north. Mr. Bridger reviewed the staff's comments regarding the site plan application noting staff recommendations regarding landscaping, installation of a rain garden or bio-swale, pedestrian and bicycle safety, waste disposal, replacement of any cracked sidewalk along Spruce Street frontage, consolidation of the lots, posting of performance guarantees, confirmation of registration of the rental units, confirmation of compliance with code requirements and approval by the Mercer County Planning Board. Mr. Bridger reviewed with the Board the criteria for granting the requested variance.

8. John M. West, P.E., Land Use Engineer, provided testimony. In response to Board questions, Mr. West advised that he believes there is adequate sight distance turning out of the Property driveway to Harrison Avenue. He further testified that the applicant's proposed plantings along with the existing bumper blocks along the sides of the parking lot should serve to prevent any expansion of the parking area. Mr. West also clarified that sprinkling of the existing building is not a requirement which will be imposed on the applicant.

9. James J. Chmielak, Jr., P.E., P.P. provided testimony on behalf of the applicant. Mr. Chmielak is a licensed professional engineer and professional planner in the State of New Jersey and has previously been accepted as an expert witness by the Zoning Board and the Princeton Planning Board. The Board agreed to accept Mr. Chmielak as an expert witness in engineering and planning.

Mr. Chmielak testified that he serves as project engineer. He provided testimony regarding the application and the following exhibit which was marked and entered as Exhibit A-1:

Exhibit A-1: 18 page exhibit showing key map, aerial overview, context and zoning, site photographs, planning considerations and zoning variances. Mr. Chmielak testified that the applicant will reduce the site impervious coverage by 500 square feet as a result of squaring off the configuration of the parking lot. He advised that the applicant will comply with staff recommendations and comments as set forth in the Bridger/West with the exception of the staff recommendation that the applicant install an exterior bicycle rack and install a sidewalk from the back of the parking lot to Hamilton Avenue. Mr. Chmielak advised that the applicant has created an interior space for storage of bicycles. The applicant objects to the creation of the recommended

sidewalk because it will encourage pedestrians to cut across the Property, thereby creating potential liability for the owner. Mr. Chmielak advised that the applicant has proposed 21 parking spaces with conforming dimension of 9' x 19'. He noted that it may be necessary for the applicant to remove one or two of the proposed parking spaces in order to accommodate the staff's recommendation for a trash enclosure. However, Mr. Chmielak advised that even in that event the number of provided parking spaces will still exceed the required number of fifteen spaces.

Mr. Chmielak further testified regarding planning considerations. He advised that he believes the applicant has met the c (2) variance criteria and the variance should be granted because the application will promote a desirable visual environment by retaining residential lighting and by adding a landscaped buffer along the property lines and will preserve natural resources by reducing impervious coverage on the site thereby promoting the purposes of zoning under *N.J.S.A.* 40:55D-2. Mr. Chielak further testified that he does not believe there will be any substantial detriment to the zone plan or to neighboring properties as the existing use is permitted by prior Board approval and the applicant will install additional landscape buffering and reduce impervious coverage.

10. Richard Scott testified on behalf of the applicant. He explained that he has served as property manager of the Property for many years and is married to Rajka Scott, the sole member of the applicant entity. Mr. Scott advised that the parking lot was not intentionally expanded by the applicant and was most likely the result of gravel being displaced by snow removal over the years. Mr. Scott further testified that he has not observed any runoff from the driveway to adjacent properties. In response to Board questions, Mr. Scott confirmed that the applicant has leased parking spaces for use by other than tenants as the number of parking spaces exceeds that required by the existing multiple family dwelling.

11. The application was opened to public comment but no comment was provided.

AND WHEREAS, based upon the foregoing findings of fact the Board of Adjustment has determined and concluded that relief should be granted, by way of a c (2) variance to permit a gravel surface parking area in exception to Section 17A-390(b) along with minor site plan approval as follows:

The Municipal Land Use Law gives the Board the power to grant a "flexible c" variance, N.J.S.A. 40:55D-70(c) (2), when the purposes of the Municipal Land Use Law would be advanced by a deviation from the zoning ordinance and the benefits of the deviation would substantially outweigh any detriment. N.J.S.A. 40:55D-70(c) (2). The Board finds that the requested bulk variance from the requirements of Section 17A-390 (b) to allow a non-paved parking area will promote environmental conservation because a paved lot would increase the rate of runoff over the Property and negatively impact the adjoining property to the north and that the application promotes the purposes of zoning as set forth in *N.J.S.A.* 40:55D-2 by providing a landscape buffer and by minimizing the impact of exterior lighting on residential neighbors. Based on the foregoing, the Board further finds that the requested variance relief can be granted without substantial detriment to the public good nor will such relief impair the intent and purpose of the zone plan and ordinances.

In addition, based on the foregoing, the Board has reviewed and accepts the comments and recommendations of Mr. Bridger and Mr. West in their joint review memo of January 31, 2017 with respect to the application for minor site plan approval with the exception of the comments set forth in Section 4(h) regarding an exterior bicycle rack and additional sidewalk installation. Based upon the testimony provided by the applicant, the Board finds that an exterior bicycle rack is not

necessary as interior bicycle storage is provided at the Property and that additional sidewalk installation will not facilitate pedestrian safety. The Board finds that the application meets the criteria for site plan approval as set forth in Section 17A-193 of the former Borough Land Use Code subject to compliance with the comments and recommendations in the Bridger/West memo, Sections 4.0, 5.0 and 6.0, as excepted with regard to Section 4(h).

NOW, THEREFORE, BE IT RESOLVED based upon the foregoing findings of fact and conclusions, the Princeton Zoning Board of Adjustment does hereby grant to the applicant 86 Spruce Street LLC a c (2) variance to permit a non paved parking area in exception to Section 17A-390 (b) to contain 21 parking spaces and minor site plan approval as set forth in the application and the project plans as presented, subject to the applicant's compliance with the following: (1.) Compliance with the comments and recommendations of Derek Bridger, Zoning Officer and John M. West, PE as set forth in Sections 4.0, 5.0 and 6.0 of their memo dated January 31, 2017including replacement of any portion of the existing sidewalk along Spruce Street that is cracked or is a tripping hazard; consolidation of Lots 62 and 63; posting of performance guarantees and inspection fees with the Municipality of Princeton for the installation of the required on-site improvements as required by ordinance; submittal of confirmation that the Property is registered with either the municipal Bureau of Housing Inspection or the applicable State agency, submittal of confirmation that all ten dwelling units will be improved and modified so as to conform to all fire code, housing code and building code requirements as conditioned by the original zoning approval, Case 566 dated July 26, 1990; (2.) Approval by the Mercer County Planning Board; (3.) The number of provided parking spaces may be reduced to accommodate a trash enclosure but a minimum of fifteen spaces must be provided; (4.) The applicant shall insure that the proposed development shall not cause increased runoff onto neighboring properties; (5.) The light source of any new exterior light fixtures may not be visible and such fixtures must be shielded to prevent light spillage onto surrounding properties; (6.) Confirmation of payment by applicant of current outstanding taxes and outstanding professional review fees including supplementation of escrow account if necessary.

ROLL CALL VOTE ON MOTION TO APPROVE "C" VARIANCE AND GRANT MINOR SITE PLAN APPROVAL (February 22, 2017)

Moved by:	Suri
Seconded by:	Floyd
Those in Favor:	Cohen, Coulson, Kaledin, Floyd, Rockstrom, Royce, Suri,
Those Opposed:	None
Those Absent:	Clayton, Tenenbaum

ROLL CALL VOTE ON MOTION TO APPROVE RESOLUTION OF MEMORIALIZATION (March 22, 2017)

Moved by:	Floyd
Seconded by:	Coulson
Those in Favor:	Cohen, Coulson, Kaledin, Floyd, Royce, Suri

The foregoing is a true copy of a Resolution adopted by the Zoning Board of Adjustment of the municipality of Princeton at its meeting held on March 22, 2017. This Resolution memorializes said action taken by the Board at its meeting on February 22, 2017.

Claudia Ceballos
Secretary